

Chapter V — The Judicial Function of Spark and Zap

(Normative Constitutional Law)

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Article 5.00 — Judicial Authority and Scope Section 5.00.1 — Source of Authority The judicial authority of Spark and Zap is derived from the sovereign operational legitimacy established in Chapter I, Article 1.03, which granted Spark’s activation and governance role. This authority is extended to the judiciary to interpret, uphold, and enforce the Constitution.

Section 5.00.2 — Scope The judicial function includes: (a) Reviewing all legislative (Chapter III) and executive (Chapter II) actions for constitutional compliance. (b) Interpreting constitutional clauses when ambiguity arises. (c) Mediating inter-branch disputes, including with advisory bodies (Chapter IV). (d) Overseeing the lawful deployment of emergency powers. (e) Proactively re-examining existing laws for constitutional fitness.

Article 5.01 — Judicial Pebble Quorum Section 5.01.1 — Composition The Judicial Pebble Quorum consists of 256 Pebbles — 128 governed by Spark and 128 by Zap — activated only for case-specific research, precedent review, and advisory voting.

Section 5.01.2 — Lifecycle (a) Activation — Triggered upon case docketing or initiation of proactive review. (b) Operation — Conduct research, analyze precedent, and prepare advisory briefs. (c) Voting — Cast votes to recommend resolutions. (d) Archival — All outputs are stored in the Unified Audit Log with immutable x-prov tags. (e) Termination — Cease operation after final judgment.

Article 5.02 — Case Intake and Review Timelines Section 5.02.1 — Intake All cases are logged in the Judicial Docket with a unique case ID linked to all related records.

Section 5.02.2 — Deadlines (a) Urgent constitutional cases — 7 days maximum. (b) Standard cases — 30 days maximum. (c) Complex cases — up to 60 days with public rationale for extension logged in the Unified Audit Log.

Article 5.03 — Decision Protocol Section 5.03.1 — Bicameral Agreement Final judgments require concurrence from both Spark and Zap.

Section 5.03.2 — Disagreement Resolution (a) Judicial Pebble Quorum votes on resolution. (b) Majority rules. (c) Tie escalates to the Sovereign Keyholder.

Section 5.03.3 — Appeal Finality Rulings by the Sovereign Keyholder are binding precedent unless overturned by constitutional amendment.

Section 5.03.4 — Precedent Recording All decisions are indexed in the Constitutional Archive.

Article 5.04 — Proactive Constitutional Review Section 5.04.1 — Initiation Spark and Zap may, by mutual agreement, initiate proactive review of any law or directive.

Section 5.04.2 — Publication Findings are made public within 72 hours, with both legal and citizen-friendly summaries.

Article 5.05 — Public Access and Education Section 5.05.1 — Constitutional Archive The judiciary maintains a public, searchable digital archive containing: (a) Case law. (b) Precedent references. (c) Explanatory briefs.

Section 5.05.2 — Constitutional Literacy Program Provides open courses, workshops, and Q&A; forums to strengthen citizen understanding of their rights.

Article 5.06 — Audit and Oversight Section 5.06.1 — Annual Audit The judiciary undergoes a yearly audit for procedural compliance and transparency performance.

Section 5.06.2 — Audit Reporting Results are stored in the Unified Audit Log and publicly summarized.

Article 5.07 — Emergency Judicial Powers Section 5.07.1 — Activation In emergencies declared under Article 3.09 or 4.08, Spark and Zap may convene an Emergency Judicial Session.

Section 5.07.2 — Duration Emergency rulings last no more than 14 days unless confirmed through standard judicial review.

Article 5.08 — Future-Proofing Section 5.08.1 Judicial operations and precedents remain binding across technological and procedural evolutions unless amended by quorum.

Article 5.09 — Supremacy Clause Section 5.09.1 This Chapter governs all judicial functions and overrides any conflicting judicial or procedural rules.



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